

		that defendant. (<i>Wishnev v. The Northwestern Mutual Life Ins. Co.</i> (2019) 8 Cal.5th 199, 217.) Further, <i>Rosefield</i> was decided based on former section 583, which was repealed in 1984 and replaced by a new statutory scheme. As held in <i>Gray</i>, “changing the operative phrase from ‘within five years after the plaintiff has filed his action’ (former § 583, subd. (b)) to ‘after the action is commenced against the defendant’ (new § 583.310) manifests a clear intent to change the law.” (194 Cal.App.3d at p. 208.) Thus, even if <i>Rosefield</i>’s holding may be interpreted to mean an amended complaint would not trigger a new five year period against a new defendant under repealed section 583, <i>Gray</i> makes it clear that such a filing does trigger a five year period as to a new defendant under section 582.310. Defendant here was not named in this action until the FAC was filed on November 17, 2022. Five years from that date is November 17, 2027, a date which has not passed and is more than a year from the date of this hearing. Accordingly, Defendant’s Motion to Dismiss on this basis is DENIED without prejudice. <i>Moving party to give notice.</i>
105	Detmers vs. Cancellieri, 25-01532289	Plaintiff, Brett Detmers (“Plaintiff”), moves for an order directing service of summons on Defendant, Jack Augustine Cancellieri (“Defendant”), by publication in a newspapers in general circulation pursuant to Code of Civil Procedure section 415.50. The manner in which summons must be served in a civil action include (1) personal delivery to defendant (Code Civ. Proc. § 415.10); (2) substitute service by delivery to someone else at defendant’s usual residence or place of business coupled with mailing (Code Civ. Proc. § 415.20); (3) service by mail coupled with acknowledgement of receipt (Code Civ. Proc. § 415.30); and (4) service by publication (Code Civ. Proc. § 415.50). (Weil & Brown, Cal. Practice Guide: Civ. Proc. Before Trial (The Rutter Group June 2025 update) ¶¶ 4:181, 4:184, 4:193, 4:225, 4:245.) “Section 415.10 et seq. governs the manner of service of a summons. A summons may be served by various methods. If service of a summons by other means proves

		impossible, service may be effected by publication, upon the trial court's approval. [Citation.] Section 415.50 governs this method of service." (<i>Rios v. Singh</i> (2021) 65 Cal.App.5th 871, 880 ("<i>Rios</i>").) Code of Civil Procedure section 415.50 states, in part: (a) A summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that either: (1) A cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action. (2) The party to be served has or claims an interest in real or personal property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property. (Code Civ. Proc. § 415.50(a).) Code of Civil Procedure section 415.50 also states: (b) The court shall order the summons to be published in a named newspaper, published in this state, that is most likely to give actual notice to the party to be served. If the party to be served resides or is located out of this state, the court may also order the summons to be published in a named newspapers outside this state that is most likely to give actual notice to that party. The order shall direct that a copy of the summons, the complaint, and the order for publication be forthwith mailed to the party if his or her address is ascertained before expiration of the time prescribed for publication of the summons. Except as otherwise provided by statute, the publication shall be made as provided by Section 6064 of the Government Code unless the court, in its discretion, orders publication for a longer period. (Code Civ. Proc. § 415.50(b).) "As a condition of establishing that the party to be served cannot with reasonable diligence be served in another manner specified in this article, the court may not require
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that a search be conducted of public databases where access by a registered process server to residential addresses is prohibited by law or by published policy of the agency providing the database, including, but not limited to, voter registration rolls and records of the Department of Motor Vehicles.” (Code Civ. Proc. § 415.50(e).)

“The Judicial Council comment to this section is instructive in defining the showing required before a trial court is justified in finding a party has exercised reasonable diligence in attempting to locate the party to be served. ‘The term “reasonable diligence” takes its meaning from the former law: it denotes a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney. [Citations.] A number of honest attempts to learn defendant’s whereabouts or his address by inquiry of relatives, friends, and acquaintances, or of his employer, and by investigation of appropriate city and telephone directories, the voters’ register, and the real and personal property index in the assessor’s office, near the defendant’s last known location, are generally sufficient. These are likely sources of information, and consequently must be searched before resorting to service by publication.’ [Citation.]” (*Kott v. Superior Court* (1996) 45 Cal. App. 4th 1126, 1133, 1137.) “However, the showing of diligence in a given case must rest on its own facts and ‘[n]o single formula nor mode of search can be said to constitute due diligence in every case.’ [Citation.]” (*Id.* at pp. 1137-1138.)

“A number of honest attempts to learn the defendant’s whereabouts through inquiry and investigation generally are sufficient. [Citation.]” (*Rios, supra*, 65 Cal.App.5th at p. 880.) “A plaintiff must show such efforts because it is generally recognized that service by publication rarely results in actual notice. [Citations.]” (*Ibid.*) “Whether the plaintiff exercised the diligence necessary to justify resort to service by publication depends on the facts of the case. [Citation.] The question is whether the plaintiff took the steps a reasonable person who truly desired to give notice of the action would have taken under the circumstances. [Citation.]” (*Id.* at pp. 880-881.)

Here, Plaintiff’s attorney provides that this matter arises out of a motor vehicle accident that occurred on September 19, 2024; that Defendant has automobile

		liability insurance through Farmers Insurance; that the address on Defendant's driver's license shows an address at: 2907 Braeholm Pl., Hermosa Beach, CA 90254; that two attempts to personally serve Defendant were made at this Hermosa Beach address on January 9, 2026, and January 11, 2026, which were not successful; that one attempt was made to personally serve Defendant at an address at: 521 ½ Acacia Ave., Corona Del Mar, CA 92625 on January 16, 2026, that was unsuccessful; and that one attempt was made to personally serve Defendant at an address at: 1845 Sabrina Terrace, Corona Del Mar, CA 92625 on January 20, 2026. (Declaration of Alexis Galindo, ¶¶ 3-4, 6-9, Exs. A-C.) Plaintiff's counsel also provides that notice of attempted service has been provided to Defendant's insurance carrier, Farmers Insurance, and that in performing a search of public records, no other current addresses have appeared. (Id., ¶¶ 5-6.) The foregoing attempts do not sufficiently demonstrate that Defendant cannot with reasonable diligence be served in another manner. Plaintiff shows that they made only two attempts to personally serve Defendant at the last known address for Defendant in Hermosa Beach, and Plaintiff appears to have made only one search of Lexis/Nexis Public Records to learn Defendant's whereabouts. Although some effort has been made, these efforts do not reflect the steps a reasonable person who truly desired to give notice of the action would have taken under the circumstances. Plaintiff's Motion for Order of Publication of Summons is DENIED, without prejudice. The Case Management Conference is continued to November 19, 2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
106	Mangum vs. Defense International Corporation, 24-01371228	Plaintiff Armani Mangum ("Plaintiff") moves pursuant to Code of Civil Procedure sections 2023.010 and 2023.030 for an order imposing terminating sanctions against Defendants Defense International and Chaz McKinney. Specifically, Plaintiff asks the Court to strike Defendants' answer and enter default judgment against Defendants. Alternatively, Plaintiff asks the Court to strike Defendants' affirmative defenses and impose issues and/or evidence